

		Because the petition seeks, in part, to remove the trustee (ROA 2 at 3:25-4:20) and the trustee holds title to a trust's real property, the petition asserts a real property claim. "The trustee of a trust holds title to real property. Unlike a corporation, a trust is not a legal entity. Rather, a trust is a fiduciary <i>relationship</i> with respect to property. When property is held in trust, there is always a divided ownership of property, generally with the trustee holding legal title and the beneficiary holding equitable title. Trusts do not own property; trustees do." (<i>Newell v. Superior Court</i> (2024) 107 Cal.App.5th 728, 736–737.) If Petitioners are successful on their claim, a new trustee would be designated and that new trustee would then hold title to the Property in his or her name as successor trustee. (<i>Id.</i> at p. 737.) <u>Probable validity of the claim.</u> To overcome the motion to expunge, Petitioners must establish "it is more likely than not [she] will obtain a judgment" on her real property claim. (Code of Civ. Proc., § 405.3.) Petitioner's showing must be by a preponderance of the evidence. (Code of Civ. Proc., § 405.32.) The briefs filed by both parties focus almost entirely on the issue of whether there was a real property claim. Neither party presents evidence or argument regarding the probable validity of Petitioners' claims. Accordingly, the court requests supplemental briefing on that issue. Petitioners may file and serve supplemental briefing on the issue of probable validity no later than June 10, 2026. Respondent may file and serve responsive supplemental briefing on the issue probable validity no later than June 24, 2026. Neither party's briefing may exceed seven pages, not including declarations and exhibits. The hearing on the motion to expunge is CONTINUED to July 1, 2026 at 9:00 AM in Department CM08. The court directs the clerk to give notice.
4	Nguyen – Elder Abuse; 30-2025-01501681	MOTION FOR JUDGMENT
5	Thompson – Probate; 30-2024-01405460	MOTION FOR COURT ORDER TO ACCESS DECEDENT'S DIGITAL ASSETS AND DEVICE

6	Anderson – Conservatorship; 30-2024-01440736	MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES (ROA 151) Petitioner Mark A. Anderson ("Petitioner") moves pursuant to Code of Civil Procedure section 2030.300 to compel Respondent Eric R. Anderson ("Respondent") to further respond to Special Interrogatories 1-63. The motion is unopposed despite proof of service. The evidence before the court is that special interrogatories were served on 5/27/25. Counsel for Petitioner offered an extension of time to respond by 7/10/25 but with objections waived. Responses were served on 7/7/25 and contained a mix of objections and substantive responses. The Responses were unverified. The parties agreed to extend Petitioner's time to bring this motion to 10/10/25. Efforts to meet and confer were unsuccessful. The "General Objections" are procedurally improper. (Code Civ. Proc. §§ 2030.210(a)(3) and 2030.240(b).) Moreover, Respondent waived all objections by not timely responding to the discovery and accepting the conditional extension of time. (Code Civ. Proc. § 2030.290(a).) Respondent's responses to special interrogatories 1-21, 24, 26-30, 32-35, 38, 39, 41, 42, 44, 45, 47, 48, 50, 51, 53, and 54 do not comply with Code of Civil Procedure section 2030.220. Respondent's objections to special interrogatories 22, 31, and 37 are without merit. Respondent is making a contention as to the reason he is "concerned." Moreover, Respondent waived objections. As to special interrogatories. 23, 40, 49, and 52: The court finds the substantive answers are sufficient, though they must be verified. (Code Civ. Proc. § 2030.250.) Moreover, if any information was withheld based on the General Objections, the answers must be modified. As to special interrogatories 25, 43, and 46: The substantive responses are insufficient. Petitioner must state how, when, where, and by whom he was "informed." Further, Respondent must state the factual basis for his understandings, concerns, and beliefs. As to special interrogatory 36: An initial response must be provided.
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